

constitutional sources. See the *Civil Rights Cases*, 109 U. S. 3. Compare *United States v. Williams*, *supra*, with *Screws v. United States*, 325 U. S. 91. If petitioners have alleged facts constituting a deprivation under color of state authority of a right assured them by the Fourteenth Amendment, they have brought themselves within § 1979. *Douglas v. Jeannette*, 319 U. S. 157; *Hague v. C. I. O.*, 307 U. S. 496, 525-526 (opinion of Stone, J.).⁴

To be sure, *Screws v. United States*, *supra*, requires a finding of specific intent in order to sustain a conviction under the cognate penal provisions of 18 U. S. C. § 242⁵—“an intent to deprive a person of a right which has been made specific either by the express terms of the Constitution or laws of the United States or by decisions interpreting them.” 325 U. S., at 104. Petitioners’ complaint here alleges no such specific intent. But, for a number of reasons, this requirement of *Screws* should not be carried over and applied to civil actions under § 1979. First, the word “willfully” in 18 U. S. C. § 242 from which the requirement of intent was derived in *Screws* does not appear in § 1979. Second, § 1979, by the very fact that it is a civil provision, invites treatment different from that to be given its criminal analogue. The constitutional scruples concerning vagueness which were deemed to compel the *Screws* construction have less force in the context of a civil proceed-

⁴ It was brought to the attention of Congress in 1871 that “rights, privileges, or immunities” was a more extensive phrase than “privileges or immunities” as used in the Fourteenth Amendment prohibiting a State from abridging “the privileges or immunities of citizens of the United States.” Cong. Globe, 42d Cong., 1st Sess., App. 49-50.

⁵ “Whoever, under color of any law, statute, ordinance, regulation, or custom, willfully subjects any inhabitant of any State . . . to the deprivation of any rights, privileges, or immunities secured or protected by the Constitution or laws of the United States . . . shall be fined not more than \$1,000 or imprisoned not more than one year, or both.”